

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that  
5 prior to handling counsel may have received it, and I  
6 can't confirm whether that was produced. I take  
7 counsel's word, of course, but we -- I can represent to  
8 you that our office did not receive the 911 call until  
9 the day of the MSC -- the day before the MSC and that  
10 was an attachment link. There was no sort of ability to  
11 verify whether that was accurate or not.

12 And we were not present -- our office was not  
13 on the case when Mr. Rosario's deposition was taken  
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some  
17 materials that have been submitted by Mr. Rosario. I  
18 think we did get a copy of a reply from someone with the  
19 custodian of records for -- it may have been the fire  
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some  
22 documents, and they said they no longer have them. I  
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --